



CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

For candidates, contractors, consultants, employees, and authorized collaborators.

Effective date *

Recipient full legal name *

Recipient address *

Role / relationship *

AGREEMENT OVERVIEW

This Agreement is entered into between Brownstone Careers (the "Company") and the individual or entity identified above (the "Recipient"). It establishes obligations for protecting confidential, proprietary, candidate, client, business, technical, and operational information.

1 Purpose and scope

The Recipient may receive or access Confidential Information solely for evaluating, performing, or supporting an authorized recruitment, employment, contractor, consulting, client-service, or business relationship with the Company (the "Purpose"). The Recipient shall use Confidential Information only for the Purpose and for no other personal, commercial, competitive, or unauthorized purpose.

2 Definition of Confidential Information

"Confidential Information" means all non-public information disclosed or made available by or on behalf of the Company, whether oral, written, electronic, visual, recorded, observed, or otherwise obtained. It includes, without limitation:

- candidate, applicant, employee, contractor, client, vendor, and partner information;
- personal data, identity records, background-screening information, resumes, compensation, and contact details;
- business plans, pricing, financial information, processes, policies, training materials, workflows, and strategy;
- software, systems, credentials, technical configurations, databases, reports, templates, designs, and intellectual property;
- communications, meeting content, research, assignments, work product, and information marked or reasonably understood to be confidential.



3 Recipient obligations

The Recipient agrees to protect Confidential Information using at least reasonable care and no less than the care used to protect the Recipient's own information of similar sensitivity. The Recipient shall:

- keep Confidential Information secure and prevent unauthorized access, disclosure, copying, transmission, or use;
- limit access to persons who have a legitimate need to know and are bound by confidentiality duties at least as protective as this Agreement;
- follow Company privacy, security, records-management, and system-access instructions;
- not upload Confidential Information to unauthorized platforms, personal cloud storage, public AI tools, or unapproved devices;
- promptly report any suspected loss, misuse, security incident, or unauthorized disclosure;
- not remove, alter, or obscure confidentiality, copyright, trademark, or ownership notices.

4 Exclusions

Confidential Information does not include information that the Recipient can demonstrate through reliable written records:

- was lawfully known to the Recipient without confidentiality restriction before disclosure by the Company;
- becomes publicly available through no breach of this Agreement;
- is received lawfully from a third party without a duty of confidentiality;
- is independently developed without use of or reference to Confidential Information;
- is approved for release in a written authorization signed by the Company.

5 Legally required disclosure

If the Recipient is required by law, regulation, subpoena, court order, or governmental request to disclose Confidential Information, the Recipient shall, to the extent legally permitted, promptly notify the Company in writing and reasonably cooperate in seeking protective treatment. The Recipient shall disclose only the minimum information legally required.

6 Data protection and sensitive information

The Recipient shall handle personal and sensitive information only as authorized and only for legitimate business purposes. Full Social Security numbers, passwords, PINs, banking credentials, medical information, and other highly sensitive records must not be collected, copied, retained, or transmitted unless expressly authorized in writing and supported by an approved secure process.

7 Ownership and no license

All Confidential Information remains the property of the Company or the applicable third-party owner. No license, ownership interest, employment right, partnership, agency relationship, or other right is granted by this Agreement except the limited right to use Confidential Information for the Purpose.



8 Return, deletion, and retention

Upon request, completion of the Purpose, or termination of the relationship, the Recipient shall promptly return or securely destroy all Confidential Information in the Recipient's possession or control, including copies, extracts, notes, downloads, backups, and derivative materials, except where retention is required by law or an approved records policy. Any retained information remains subject to this Agreement.

9 Term and survival

This Agreement begins on the Effective Date and remains in effect throughout the parties' relationship. Confidentiality and restricted-use obligations continue for the period entered below, except that trade secrets and information protected by law remain protected for as long as they qualify for protection.

Confidentiality term after last disclosure (years)

Other approved term, if applicable

10 No public statements or representation

The Recipient shall not make public statements, announcements, endorsements, social-media posts, or representations using the Company's name, logo, clients, candidates, projects, or relationship without prior written authorization. Nothing in this Agreement authorizes the Recipient to bind or represent the Company.

11 Remedies

The Recipient acknowledges that unauthorized use or disclosure may cause harm that cannot be adequately remedied by money damages alone. Subject to applicable law, the Company may seek injunctive relief, specific performance, damages, recovery of reasonable enforcement costs where permitted, and any other available remedy. These remedies are cumulative.

12 General provisions

- Entire agreement: This Agreement contains the complete understanding concerning confidentiality for the Purpose and supersedes prior inconsistent discussions on that subject.
- Amendments: Any amendment or waiver must be in writing and signed by an authorized representative of the Company and the Recipient.
- Severability: If any provision is unenforceable, it shall be modified to the minimum extent necessary, and the remaining provisions remain effective.
- Assignment: The Recipient may not assign this Agreement without the Company's written consent.
- Electronic signatures: Signatures and counterparts transmitted electronically are intended to be effective to the extent permitted by law.
- No waiver: A delay or failure to enforce a right does not waive that right.



RECIPIENT ACKNOWLEDGMENT

By signing below, the Recipient confirms that the Agreement has been read, understood, and accepted; that the Recipient has had an opportunity to ask questions or seek independent advice; and that all information entered is accurate.

GOVERNING LAW AND VENUE

State / jurisdiction *

County / venue, if applicable

13 Recipient certification

- ☐ I have read and agree to the terms of this Agreement.
- ☐ I understand my duty to protect candidate, client, business, and personal information.
- ☐ I understand that unauthorized disclosure may result in legal or contractual consequences.

Recipient full legal name *

Recipient title / role

Electronic signature (type full legal name) *

Date signed *

14 Brownstone Careers authorization

Authorized representative name *

Title *

Owner: Brownstone Careers

Classification: Confidential

Version: 2.1

Review cycle: At least annually

Template notice: Review with qualified legal counsel before use in a specific jurisdiction or relationship.